

43. **Settlement with one residuary legatee.**—If one of several residuary legatees receives only what is his fair share at the time, the subsequent wasting of the assets will not entitle the other residuary legatees to call upon him to refund; for if the executor renders his accounts to a residuary legatee and pays him his share, what right or business has such residuary legatee to interfere further in the matter of the administration of the estate? He cannot take proceedings for the administration of it; and, were he to do so, he would probably have to pay the costs. If so, why is he to suffer for the *laches* and neglect of the other residuary legatees, who have not required the executor to account to them or to pay over the balance in his hands or due from him (*g*). [But if any question of construction of the will is likely to arise as to any other share, which will involve costs which are properly payable out of the general estate, the trustee should retain a sufficient sum to protect himself against such costs (*h*).]

*44. **Release.**—On the final adjustment of the [*358] trust accounts it is usual for the trustee, on handing over the balance to the parties entitled, to require from them an acknowledgment that all claims and demands have been settled (*a*). It is reasonable, that when the trustee parts with the whole fund, and so denudes himself of the means of defence, he should be placed by the party receiving the benefit in the utmost security against future litigation. But a receipt in full of all claims extends only to all claims that are then known (*b*).

In practice it is usual to require a release under seal, for although an acquittance of this kind *may* be opened by the *cestui que trust* on showing fraud, concealment, or mistake,

Beav. 583; *Davies v. Hodgson*, 25 Beav. 177; *Griffiths v. Porter*, 25 Beav. 236. As to overpayment to a *feme covert*, whose anticipation is restrained, see *Moore v. Moore*, 1 Coll. 54. As to a wrong payment to one *cestui que trust* by arrangement with another *cestui que trust*, see *Rogers v. Ingham*, 3 Ch. D. 351.

(*g*) *Peterson v. Peterson*, 3 L. R. Eq. 111; see 114.

[(*h*) *Re Potts*, W. N. 1884, p. 106.]

(*a*) See — *v. Osborne*, 6 Ves. 455; but *query* if the *release* spoken of was not a *conveyance*.

(*b*) *Eaves v. Hickson*, 30 Beav. 142.